

STATEMENTS OF PROSECUTION WITNESSES

Recorded during investigation and reproduced for case analysis

PW-1 — Shri Anil Dattatreya Kulkarni (Complainant), 52 yrs

Statement u/s 161 CrPC recorded on 05-Feb-2026

I am the proprietor of M/s Sunrise Infra Ventures, engaged in infrastructure contracting in Mumbai. On 10-Jan-2026 I received a promotional call from one Rajesh Kumar introducing himself as Sales Head of M/s Nimbus Buildcon Ltd. He informed me about a pre-launch opportunity in a luxury project at Tardeo and offered a discount of ₹18 lakh per apartment for bulk booking of four units. He visited my office on 12-Jan-2026, 20-Jan-2026 and 28-Jan-2026, showing me a glossy brochure, a RERA certificate and sample allotment letters, all of which looked authentic. On his insistence I transferred ₹35,00,000 on 28-Jan-2026 and ₹27,00,000 on 02-Feb-2026 to the account of 'Nimbus Buildcon Ltd.' at HDFC MIDC. When I visited the Nariman Point office on 04-Feb-2026, I was told no such project existed. I immediately approached the police and lodged the complaint. I later identified the accused in the Test Identification Parade conducted on 15-Mar-2026 at Arthur Road Jail.

Cross-examination highlights (recorded on 18-May-2026)

I maintain that I verified the RERA number appearing on the brochure online before making the first payment; however I did not print the verification page. I agree I never visited the Tardeo site before paying. I did not independently call the 'company landline' because the accused always called from his mobile. The police returned ₹4,75,000 recovered from the accused; the balance remains un-recovered. I am aware the accused has claimed the money was a 'friendship loan' — I deny this entirely.

PW-2 — Shri Sunil Jadhav (Receptionist, Sunrise Infra Ventures)

Statement u/s 161 CrPC recorded on 07-Feb-2026

I work as receptionist at Sunrise Infra Ventures for the last six years. The accused visited our office on three occasions. On each visit he waited for the proprietor and handed over his visiting card. I remember him because he was well-dressed and spoke very confidently. On 28-Jan-2026 he stayed for about two hours. He was accompanied by another person whom I did not see on earlier visits. I identified the accused from his photograph shown to me by the police.

PW-3 — Shri Deepak Rane (Accountant, Sunrise Infra Ventures)

Statement u/s 161 CrPC recorded on 07-Feb-2026

As accountant I prepared the RTGS transfer request for ₹35,00,000 on 28-Jan-2026 and for ₹27,00,000 on 02-Feb-2026, both favouring 'Nimbus Buildcon Ltd.' Account No. 50100123XXXX67890 at HDFC MIDC. The proprietor approved the transfers based on the documents shown by the accused. I retain the bank acknowledgements in our office records, which I handed over to the police.

PW-4 — Shri Mohd. Irfan (Security Guard)

Statement u/s 161 CrPC recorded on 08-Feb-2026

I am posted at the main gate of the MIDC office complex. On 28-Jan-2026 at about 16:45 hrs I saw the accused leaving the premises and getting into a white Hyundai Creta, registration number MH-01-XX-4522. I noted the number because the car was brand new and had no number plate frame. The driver looked like the same person

shown to me later by the police.

PW-7 — Dr. Nalini Menon (Deputy Director, Forensic Science Laboratory, Kalina)

Expert report dated 05-Mar-2026 (FSL/Kalina/2026/118)

On examination of the questioned documents (Exhibits A-1 to A-3) against admitted signatures of the purported Managing Director of Nimbus Buildcon and of the accused, I am of the opinion that: (i) the signatures on the allotment letters and RERA certificates are not genuine and have been traced/simulated; (ii) the company stamp affixed on the documents was prepared using a crude engraved master not matching the genuine seal; and (iii) the brochures bear evidence of digital manipulation in the text layer. Full report with enlarged exhibits and spectrographic charts is annexed.

PW-8 — API Meera Deshmukh (Investigating Officer)

Statement u/s 161 CrPC recorded on 20-Mar-2026

I took over investigation on 08-Feb-2026. I recorded statements of PW-1 to PW-7, seized the CCTV footage, obtained the HDFC bank account opening file and withdrawal vouchers, and obtained the FSL report. On 12-Mar-2026 I arrested the accused from a rented room in Govandi and recovered ₹4,75,000, a forged company stamp, two mobile phones and a laptop. The test identification parade was conducted on 15-Mar-2026 wherein the complainant correctly identified the accused. On completion, I submitted the final report on 22-Mar-2026.

Recorded & verified by:

PSI Sandeep R. More

Investigating Officer

Witnesses:

PW-1 to PW-4, PW-7, PW-8

As deposed above